

25CV-06874 People vs \$118,165.00 US Currency

Status Conference

CONTINUED ON THE COURT'S OWN MOTION to July 29, 2026, at 8:15 a.m. in Courtroom 8 to trail the request for entry of default judgment.

Motion for Default Judgment

Plaintiff is ordered to submit for this Court's consideration the proper forms for a request for entry of default judgment including an order for this Court's signature which did not accompany the motion (*sic*) for default judgment. Upon submission of a proper order, it will be submitted for this Court's review. If the default judgment is entered, the continued hearing dates will be vacated.

CONTINUED to July 29, 2026, at 8:15 a.m. in Courtroom 8 in light of the above order.

26CV-01949 Jake LeBeaux vs City of Atwater, et al.

Hearing: In Camera

Appearance required.

26CV-03068 Sierra Ceja vs Xochitl Gomez Duarte

Order to Show Cause re: Restraining Order

Appearance required. Respondent filed a response to the request for a civil harassment restraining order.

26CV-03091 Vanessa Mercado vs Danielle Navarro

Order to Show Cause re: Restraining Order

Appearance required. No proof of service of the notice of hearing on Respondent has been filed with the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Judge Pro Tem Peter MacLaren
Courtroom 9

627 W. 21st Street, Merced

Wednesday, June 24, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-03230	Discover Bank vs. Nickolas Lemas
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Motion for Judgment on the Pleadings

The unopposed motion for judgment on the pleadings by plaintiff Discover Bank is GRANTED without leave to amend the answer. (Code Civ. Proc., § 438, subd. (c)(1)(A).) The Court finds that the complaint states facts sufficient to constitute a cause of action for breach of written contract against defendant Nickolas Lemas. Defendant's amended answer filed on September 4, 2024, admits all statements of the complaint and does not allege any facts constituting a defense. In the absence of any opposition indicating how Defendant might amend his answer to allege a defense, the motion is granted without leave to amend.

Judgment shall be entered in favor of Plaintiff and against Defendant. Plaintiff is entitled to costs as prevailing party. The Court will sign the proposed order and judgment submitted with the moving papers.

The court trial scheduled for October 14, 2026, is vacated.